Bill No. 276 of 2024

THE UNION TERRITORIES LAWS (AMENDMENT) BILL, 2024

A

BILL

further to amend the Government of Union Territories Act, 1963*, the Government of National Capital Territory of Delhi Act,* 1991 *and the Jammu and Kashmir Reorganisation Act,* 2019.

BE it enacted by Parliament in the Seventy-fifth Year of the Republic of India as follows:—

Short title and commencement.

1. (*1*) This Act may be called the Union Territories Laws (Amendment) Act, 2024.

(*2*) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

Amendment of Act 20 of 1963.

2. Section 5 of the Government of Union Territories Act, 1963 shall be numbered as sub-section (*1*) thereof, and after sub-section (*1*) as so numbered, the following sub-sections shall be inserted, namely:—

"(*2*) The five-year period from the date of the first meeting of the Legislative Assembly shall be referred to as full term of the Legislative Assembly.

(*3*) Notwithstanding anything in sub-section (*1*), the term of the Legislative Assembly of Union territory constituted in any general election held after the appointed date referred to in clause (1) of article 82A of the Constitution shall come to an end on the expiry of the full term of the House of the People.

(*4*) Where the Legislative Assembly is dissolved sooner than the expiry of its full term referred to in sub-section (*1*) or sub-section (*3*), the period between its date of dissolution and the full term of the House of the People shall be referred to as unexpired term of the Legislative Assembly.

(*5*) Notwithstanding anything in sub-section (*1*), where the Legislative Assembly is dissolved sooner than the expiry of full term referred to in sub-section (*1*) or sub-section (*3*), and a new Legislative Assembly is constituted pursuant to elections occasioned by such dissolution, then, such new Legislative Assembly unless sooner dissolved, shall continue for such period as is equal to the unexpired term of the immediately preceding Legislative Assembly and the expiration of this period shall operate as a dissolution of the Assembly.

(*6*) The Legislative Assembly constituted under sub-section (*5*) shall not be a continuation of the previous Legislative Assembly and all the consequences of dissolution shall apply to the Legislative Assembly referred to in sub-section (*4*).".

Amendment of Act 1 of 1992.

3. Section 5 of the Government of National Capital Territory of Delhi Act, 1991 shall be numbered as sub-section (*1*) thereof, and after sub-section (*1*) as so numbered, the following sub-sections shall be inserted, namely:—

"(*2*) The five-year period from the date of the first meeting of the Legislative Assembly shall be referred to as full term of the Legislative Assembly.

(*3*) Notwithstanding anything in sub-section (*1*), the term of the Legislative Assembly constituted in any general election held after the appointed date referred to in clause (1) of article 82A of the Constitution shall come to an end on the expiry of the full term of the House of the People.

(*4*) Where the Legislative Assembly is dissolved sooner than the expiry of its full term referred to in sub-section (*1*) or sub-section (*3*), the period between its date of dissolution and the full term of the House of the People shall be referred to as unexpired term of the Legislative Assembly.

(*5*) Notwithstanding anything in sub-section (*1*), where the Legislative Assembly is dissolved sooner than the expiry of full term referred to in sub-section (*1*) or sub-section (*3*), and a new Legislative Assembly is constituted pursuant to elections occasioned by such dissolution, then, such new Legislative Assembly unless sooner dissolved, shall continue for such period as is equal to the unexpired term of the immediately preceding Legislative Assembly and the expiration of this period shall operate as a dissolution of the Assembly.

(*6*) The Legislative Assembly constituted under sub-section (*5*) shall not be a continuation of the previous Legislative Assembly and all the consequences of dissolution shall apply to the Legislative Assembly referred to in sub-section (*4*).".

Amendment of Act 34 of 2019.

4. Section 17 of the Jammu and Kashmir Reorganisation Act, 2019 shall be numbered as sub-section (*1*) thereof, and after sub-section (*1*) as so numbered, the following sub-sections shall be inserted, namely:—

"(*2*) The five-year period from the date of the first meeting of the Legislative Assembly shall be referred to as full term of the Legislative Assembly.

(*3*) Notwithstanding anything in sub-section (*1*), the term of the Legislative Assembly constituted in any general election held after the appointed date referred to in clause (1) of article 82A of the Constitution shall come to an end on the expiry of the full term of the House of the People.

(*4*) Where the Legislative Assembly is dissolved sooner than the expiry of its full term referred to in sub-section (*1*) or sub-section (*3*), the period between its date of dissolution and the full term of the House of the People shall be referred to as unexpired term of the Legislative Assembly.

(*5*) Notwithstanding anything in sub-section (*1*), where the Legislative Assembly is dissolved sooner than the expiry of full term referred to in sub-section (*1*) or sub-section (*3*), and a new Legislative Assembly is constituted pursuant to elections occasioned by such dissolution, then, such new Legislative Assembly unless sooner dissolved, shall continue for such period as is equal to the unexpired term of the immediately preceding Legislative Assembly and the expiration of this period shall operate as a dissolution of the Assembly.

(*6*) The Legislative Assembly constituted under sub-section (*5*) shall not be a continuation of the previous Legislative Assembly and all the consequences of dissolution shall apply to the Legislative Assembly referred to in sub-section (*4*).”.

STATEMENT OF OBJECTS AND REASONS

A High Level Committee under the Chairmanship of Shri Ram Nath Kovind, former President of India was constituted on 2nd September, 2023 to examine the issue of simultaneous elections and make recommendations for holding simultaneous elections in the country. After due deliberation and examination of all the material available on record and the consultations held on the subject, the Committee submitted its recommendations to the Hon'ble President on 14th March, 2024 for holding of simultaneous election to the House of the People and all Legislative Assemblies at the first stage. The Government has accepted the recommendations of the High Level Committee.

2. The Committee recommended that in the first stage elections to the House of the People and the Legislative Assemblies, including Legislative Assemblies of Union territories should be held simultaneously. For implementation of the recommendations of the High Level Committee at the first stage, a Bill, namely, the Union Territories Laws (Amendment) Bill, 2024 is proposed, providing for holding of simultaneous elections to the House of the People and the Legislative Assemblies of the Union territories.

3. The Union Territories Laws (Amendment) Bill, 2024 proposes to make consequential amendments in section 5 of the Government of Union Territories Act, 1963, section 5 of the Government of National Capital Territory of Delhi Act, 1991 and section 17 of the Jammu and Kashmir Reorganisation Act, 2019 to align the holding of simultaneous elections along with the House of the People and State Legislative Assemblies.

4. The Bill seeks to achieve the above objectives.

NEW DELHI; ARJUN RAM MEGHWAL.

The 12*th December*, 2024.

LOK SABHA

A

BILL

further to amend the Government of Union Territories Act, 1963, the Government of National Capital Territory of Delhi Act, 1991 and the Jammu and Kashmir Reorganisation Act, 2019.

(*Shri Arjun Ram Meghwal, Minister of State (I/C) for Law & Justice and Minister of State of Parliamentary Affairs*)

संघ राज्यक्षेत्र विधि (संशोधन) विधेयक, 2024 का शुद्धि पत्र

पृष्ठ	पंक्ति	के स्थान पर	पढ़ें
2	25	संख्यांकित उपधारा	संख्यांकित उपधारा (1)
3	10	उपधारा	उपधारा (1)
4	19	1993	1991